

24PSCV03501 24PSCV03501

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Case Number: 24PSCV03501 Hearing Date: September 16, 2026 Dept: O

Tentative

Ruling

Defendants,

ART GUADALAJARA, and GENESIS FLOOR COVERING INC., (“Defendants”) Motion for a Protective Order is DENIED;

Defendants have not established good cause.

Background

This

case arises from a car accident that happened on January 16, 2023.

On

October 17, 2024, Plaintiffs WILLIAM TORRES, an individual; LYNN MENDEZ, an individual; and MATEO

TORRES,

an individual, by and through his Guardian ad Litem, WILLIAM TORRES filed suit against Defendants ART GUADALAJARA, an individual and GENESIS FLOOR COVERING INC. (“Genesis”) for Negligence.

On

January 17, 2025, Genesis filed its answer and that same day filed a cross-complaint (CC) against Plaintiff William Torres for (1) Indemnification and (2) Apportionment of Fault.

On

March 3, 2025, Defendant Guadalajara filed his answer. (The caption states it

is the answer of Genesis.)

On

May 5, 2025, Plaintiff Torres filed his answer to the CC.

On

February 11, 2026, the parties attended an IDC. The court allowed Defendant to file their motions.

On

June 8, 2026, the instant motion was filed.

On

June 24, 2026, the court issued an order indicating that the IDC is taken off calendar and plaintiffs may file their motions.

On

August 11, 2026, an opposition was filed, with a request for sanctions.

To

date, as of 11 AM on 9/10, no reply has been filed (due 9/9, 5 court days before the hearing per CCP 1005(b)).

Discussion

Defendants

move this court pursuant to Sections 2019.020 and 2025.420 of the California Code of Civil Procedure ("CCP") for a protective order that the deposition of Defendant Art Guadalajara shall not be taken until after the depositions of Plaintiffs William Torres, Lynn Mendez, and Mateo Torres are completed. (They also seek sanctions of \$2,460.00.) More specifically, Defendants seek to maintain the "status quo" which was that Defendants would depose the three Plaintiffs first but then after Plaintiffs failed to appear at their depositions on March 26 and 27, 2026, on March 31, 2026, Plaintiffs for the first time served a notice of deposition of Defendant Art Guadalajara, setting the deposition for April 29, 2026.

For reasons to be explained below,

Defendants have not identified good cause for the court to establish the sequence and timing of discovery. (See e.g. Opp. p. 5:21-27 ["They do not contend

that Guadalajara's deposition would subject him to annoyance, embarrassment, oppression, undue burden, or expense. Nor do they identify any substantive prejudice that would result if Guadalajara is deposed before Mateo. Defendants do not explain how Guadalajara's testimony would be compromised, what unfair tactical advantage Plaintiffs would obtain, or why Guadalajara cannot be adequately prepared for deposition without first examining all three Plaintiffs.".) Defendants' citation to their two cases all but confirm the court's ruling.[1]

In Poeschl

v. Superior Court In and For Ventura County (1964) 229 Cal.App.2d 383, the action was one for damages for an alleged breach of an employment contract. (Id. at p. 384.) Both the parties' depositions were set for the same day but via priority of notice and a stipulation, the deposition of the petitioner defendant was to go first. (Ibid.) About one week before the deposition date, the defendant noticed a motion for an order directing the plaintiff to produce "all recordings taken or possessed [sic] by him of conversations between himself and petitioner or any employee or agent of petitioner relating to his employment or discharge by petitioner" because the defendant "should be entitled to refresh his recollection from any recordings possessed by the real party prior to the taking of his deposition." (Ibid, emphasis added.) The motion was denied, as were other attempts like relieving the defendant from the stipulation or alternatively allowing the petitioner to be deposed after the plaintiff. (Id. at pp. 384-385.) On appeal, the court directed the trial court to issue its order that the plaintiff produce the recordings before taking the deposition of the defendant. (Id. at p. 387.) Aside from the defendant acting promptly for the recordings, the court reasoned, while relying upon other cases, that the plaintiff was seeking the advantages that would flow from his being able to refresh his recollection from the recordings before giving his deposition while denying to the defendant those conversations equal opportunity to refresh their recollections before giving their depositions. (Id. at p. 386.)

Here,
no such advantage has been set forth by Defendants.

Equally

unavailing is Defendants' citation to Rosemont
v. Superior Court, (1964) 60 Cal.2d
709 as that case too involved the propriety of a discovery

order permitting defendants to inspect and transcribe certain recordings prior to the taking of their depositions.

All in all, as demonstrated by Poeschl, if one party is seeking an unfair advantage from the timing of the deposition, the other party may seek a protective order. What is more, the burden is on the moving party to establish "good cause" for whatever relief is requested: "Generally, a deponent seeking a protective order will be required to show that the burden, expense, or intrusiveness involved in ... [the discovery procedure] clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence." (Emerson Elec. Co. v. Sup.Ct. (Grayson) (1997) 16 Cal.4th 1101, 1110; see *Nativi v. Deutsche Bank Nat'l Trust Co.* (2014) 223 Cal.App.4th 261, 318 burden not met by "entirely conclusory" declaration that "lacked any factual specificity".) Here, Defendants have not their burden in demonstrating the necessary good cause aside from it being their "preference" that Plaintiffs be deposed first. (Motion p. 8:27-28.)

Conclusion

Based on the foregoing, the motion is denied. As for Plaintiffs' request for sanctions, that is denied.

[1] Defendants cite to the cases, but do not meaningfully address the facts of those cases. As for Defendants' citation to *Flynn v. Superior Court* (1979) 89 Cal.App.3d 491, that case is not instructive because "[t]he issue raised here is whether the court's further order of sanctions against petitioner was justified." (Id. at p. 495.) The protective order was "not challenged" by the petitioner. (Ibid.)